

Voluntary zoning conditions offered with the rezoning application

Governing text: docs/02-development-summary.md section 9. This file is generated by tools/sync_conditions.py; edit the development summary, not this file.

1. **Age restriction.** The development shall be operated as housing for older persons (55+) under 42 U.S.C. §3607(b)(2)(C) and 24 CFR §100.300–.308, with a recorded declaration, published policies and biennial verification (24 CFR §100.307(c)), enforceable by the City of Lilburn. At the 41 units shown, the 80-percent occupancy test of 24 CFR §100.305(a) together with the fractional-unit rule of §100.305(g) ($0.80 \times 41 = 32.8$, and the fraction counts into the 80 percent) requires **at least 33 of the 41 units** to be occupied by at least one person aged 55 or older, leaving at most 8 units that need not be; the declaration shall state that figure and shall recompute it if the unit count changes. Advertising and community documents shall not use "adult living," "adult community" or similar phrases (24 CFR §100.306(b)).
2. **Maximum units.** Not more than **47** detached single-family cottage homes (**41 shown**); no attached, multifamily, commercial or non-residential use other than the clubhouse and amenities serving residents.
3. **Height.** All dwellings one story; maximum ridge height 24 ft above finished grade (the plans as drawn on Sheets A-2.1 and A-2.2 are 17'-10" for Plan A and 19'-0" for Plan B above finished floor, i.e. 18'-6" and 19'-8" above finished grade at the front, finished floor being 8 in above grade); clubhouse one story.
4. **Buffers.** A 20-ft undisturbed buffer along all property lines abutting R-1 property (SW, NE and NW lines), held in a recorded buffer/conservation easement where it lies within lots and in common tracts elsewhere; supplemental evergreen planting where existing vegetation is sparse; no structures, fences or grading in the buffer except (a) approved pond and utility encroachments not exceeding 50 ft in perpendicular width and (b) **the single buffer reduction requested in the Letter of Intent §5 and dimensioned on Sheet C-2.3 (entry enlargement, to be issued with the filed set) — at the tangent point of the southwest curb return of the entrance on the Arcado Road right-of-way, where the buffer narrows to a minimum of 18'-0" instead of 20'-0", a reduction of 2.0 ft measured along the right-of-way affecting 0.1 SF of pavement.** The buffer is at its full 20-ft width everywhere else on the southwest, northeast and northwest lines. No other buffer reduction is requested, and none shall be taken without an amendment to these conditions.
5. **Fire sprinklers — voluntary offer.** Every dwelling shall be equipped with an NFPA 13D residential sprinkler system and the clubhouse sprinklered as the building code requires, with systems maintained under the HOA covenants. This is offered **voluntarily**: at 41 units the two-access requirement of IFC 2024 Appendix D107.1 as modified by Ga. Comp. R. & Regs. 120-3-3-.04 (which raises the trigger to more than 120 dwelling units) is not engaged, and sprinklers are therefore additional protection and a 50-percent fire-flow reduction (IFC 2024 Appendix B §B105.1), not a required mitigation. The applicant asks that this condition be accepted as offered; if the Gwinnett County Fire Marshal states in writing that sprinklers are unnecessary, the condition may be released by the Fire Marshal's written concurrence and City staff's approval without a further public hearing.
6. **Single access.** One driveway on Arcado Rd, located in the SW third of the frontage; no gate.
7. **No Arcado Road driveways.** No individual lot shall have direct vehicular access to Arcado Rd.
8. **Architectural standards.** Exterior walls of fiber-cement lap and board-and-batten siding with brick or stone water table/piers; architectural-shingle roofs with 8:12 main and front-wing gables, the front-wing gable carried forward to roof the covered front porch, and a 6:12 gable over the garage; front-loaded garages recessed ≥ 5 ft behind the front wall; covered front porches ≥ 6 ft deep; zero-step entries; floor plans, elevations and materials substantially as shown on the sheets submitted with the application — Sheets A-1.1 and A-1.2 (floor plans, Plans A and B), A-2.1 and A-2.2 (exterior elevations, Plans A and B), A-2.3 (exterior colour schemes and materials), A-3.0 (clubhouse, mail kiosk and entry monument sign) and A-4.0 and A-4.1 (typical lots); three approved colour schemes; no wall signs on any dwelling.
9. **Stream buffer.** The stream head and its 50-ft undisturbed buffer and 75-ft impervious setback preserved in a common "creek woods" tract, and the southwest area at u 1,230–1,280 that does not clear the stream screen preserved unlotted as a common stream-setback tract with no impervious cover; no lot, structure or pavement within 75 ft of the top of bank as field-delineated. The field study shall establish first whether and where a regulated stream begins (spring/seep or the 25-acre drainage-area point) and then the top of bank, and the plat shall show the 25-ft state buffer (O.C.G.A. §12-7-6(b)(15)) and the 50-ft/75-ft city lines separately.
10. **HOA maintenance.** A mandatory HOA owning and maintaining the private lane, sidewalks, stormwater facilities, buffers, common tracts, entry sign and lighting, with yard maintenance for all lots.
11. **Lighting.** Full-cutoff fixtures ≤ 3000 K; lane lighting mounted ≤ 14 ft with house-side shields facing R-1 lots; no court lighting for the pickleball courts.
12. **Construction hours.** Exterior construction limited to 7:00 AM – 7:00 PM Monday–Friday and 8:00 AM – 5:00 PM Saturday; none on Sundays or federal holidays (city ordinance governs if stricter).

13. **Tree survey and preservation.** A tree survey and preservation plan meeting Code Ch. 109 Art. V (16 TDU/ac) submitted with the LDP; preserved trees ≥ 12 -in DBH in the buffers, creek woods and stream-setback tract credited; phased clearing with immediate stabilization.
14. **Entry sign.** One monument sign ≤ 32 sf, ≤ 6 ft high, externally lit, standing about 19 ft from the Arcade Road right-of-way within the front amenity tract and outside the sight triangle; permitted separately under the sign regulations.
15. **Phasing.** Development in two phases at the **u $\approx$ 980-ft line** as shown on Sheet C-6.0 (phasing, block and open space exhibit, to be issued with the filed set); Phase 1 (24 lots) shall include the amenity block, Pond 1 and the first hammerhead turnaround shown on Sheet C-2.0. Phase 2 (17 lots) shall not commence until condition 16 is satisfied, and the existing dwelling at 4535 Arcade Road, which stands on the proposed lane alignment about 1,200 ft back from the right-of-way, shall be removed under permit before any Phase 2 land disturbance.
16. **Sanitary sewer.** Phase 1 shall be served by gravity to the existing 8-in Gwinnett County main already on the property (the Arcade Road Townhomes outfall, manhole invert 927.13), and requires **no sewer extension**. Phase 2 shall be served **only by a gravity connection**; no private pump station, private force main, private gravity sewer, grinder pump or low-pressure sewer system shall be proposed or built (Gwinnett DWR *Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions*, rev. 9/2018, allows private facilities "only ... for commercial properties under single ownership within a development"). No land-disturbance permit shall issue for Phase 2 until (a) a permanent off-site sanitary sewer easement for the gravity connection is recorded and (b) Gwinnett DWR has issued a sewer capacity certification covering the Phase-2 route. If either is not obtained, Phase 2 shall not be built and the Phase-2 area shall remain in its existing wooded condition or be re-platted as open space.
17. **Traffic impact study and access management.** The applicant shall submit a **Level-1 traffic impact study** prepared to Gwinnett DOT *Traffic Impact Study Guidelines* (2023) with the zoning application, based on **new 24-hour traffic counts** on Arcade Rd obtained from an approved contractor (the 2017 GDOT count does not satisfy the guidelines' two-year currency rule); shall furnish an intersection-sight-distance certification by a Georgia Professional Engineer for the single entrance (390 ft each way at 35 mph, Gwinnett UDO §900-40.4, Table 900.2); and shall obtain a Gwinnett County DOT driveway/encroachment permit before any land disturbance.
18. **Sidewalks and transit.** A 5-ft sidewalk along the full Arcade Rd frontage and 5-ft sidewalks within the lane tract as shown — on the northeast side for the full length of the lane and on the southwest side from u 530, where the tract first reaches the 36 ft that two walks require; the applicant will cooperate with the county and city on closing the sidewalk gap to the Killian Hill Rd bus stop.

Disclaimer: *This is an AI-generated analysis for preliminary planning purposes. All findings must be verified by a licensed professional before use in design, permitting, or regulatory submissions.*